

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #5	CCRB Case #: 201709356	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/27/2017 3:30 PM	Location of Incident: § 87(2)(b)	Precinct: 79	18 Mo. SOL 3/27/2019	EO SOL 3/27/2019	
Date/Time CV Reported	CV Reported At: Other City agency	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 11/10/2017 12:00 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ato Cadogan	01357	934815	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jeffrey Augustin	13952	944210	079 PCT
2. POM Sean Inman	03735	903141	079 PCT
3. POM Keron Edwards	17491	958544	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ato Cadogan	Abuse: Sergeant Ato Cadogan entered § 87(2)(b) in § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint via 311 on November 3, 2017. It was received by the CCRB on November 10, 2017.

On September 27, 2017, at approximately 3:30 pm, § 87(2)(b) who is § 87(2)(b), was home at § 87(2)(b) in Brooklyn with her companion § 87(2)(b) when employees of Adult Protective Services (APS) including § 87(2)(b) came to the house to conduct a wellness check. When § 87(2)(b) and § 87(2)(b) refused entry, § 87(2)(b) called 911. Sgt. Ato Cadogan of the 79th Precinct responded, called ESU, and ordered a forcible entry (**Allegation A: Abuse of Authority** – § 87(2)(g) § 87(2)(b) interviewed § 87(2)(b) inside, following which Sgt. Cadogan and APS left without further action. There is no video evidence.

Findings and Recommendations

Allegation A: Abuse of Authority – Sergeant Ato Cadogan entered § 87(2)(b) in Brooklyn.

§ 87(2)(g) .

§ 87(2)(g)

§ 87(2)(b) was eating lunch inside her home with § 87(2)(b) when she heard someone at the door. § 87(2)(b) went outside, where he encountered § 87(2)(b) from APS. § 87(2)(b) then called § 87(2)(b) who told APS via speakerphone that they could not come inside without a warrant. § 87(2)(b) returned inside, where he and § 87(2)(b) ate and talked for approximately 45 minutes, until they heard a loud noise and officers entered through the front door. § 87(2)(b) was then interviewed by APS regarding her finances and general wellbeing. APS reportedly returned to the apartment on November 3, 2017 with a warrant, and conducted further interviews with § 87(2)(b)

§ 87(2)(b) (Board Review 05 and Board Review 15) said that APS had received reports from the Department of Aging containing allegations to the effect that § 87(2)(b) was plotting to inherit § 87(2)(b)'s home; that § 87(2)(b) had a criminal record possibly related to inheritance fraud; that neighbors had not seen § 87(2)(b) in four years whereas she used to come out on the porch; that § 87(2)(b) was an alcoholic; that § 87(2)(b) occupied several homes on the same block; that § 87(2)(b) owned three pit bulls which he tied up on the porch to scare people from coming in; and that § 87(2)(b) lived in potentially unsanitary conditions, about which no further information was known. In connection with these allegations, § 87(2)(b) had visited § 87(2)(b)'s home several days prior to the incident, and § 87(2)(b) had not allowed § 87(2)(b) inside.

When § 87(2)(b) returned on September 27, 2017, § 87(2)(b) came outside but would not allow APS to enter. § 87(2)(b) told § 87(2)(b) over speakerphone that APS was trying to steal her home and that she should not allow them in, which § 87(2)(b) agreed with. § 87(2)(b) went back inside and refused to come out. § 87(2)(b) called 911, and Sgt. Cadogan responded. They did not discuss § 87(2)(b)'s case in detail, but § 87(2)(b) told Sgt. Cadogan generally of the allegations she received and that APS wished to verify whether § 87(2)(b) was in need of assistance. Sgt. Cadogan requested that ESU breach the door, which they accomplished by sliding a piece of plastic between the door and the doorframe.

Sgt. Cadogan (Board Review 06) was generally consistent with § 87(2)(b) APS told him that “they felt like § 87(2)(b) couldn’t take care of herself,” and, “didn’t trust § 87(2)(b) judgment,” but did not discuss their reasons in detail, beyond that § 87(2)(b) had refused entry, that APS had spoken with § 87(2)(b) via telephone previously, and that neighbors had not seen § 87(2)(b) for days or weeks. He did not know if it was supposed to be unusual that § 87(2)(b) had not been seen or if APS had made any unsuccessful contact attempts since speaking to her on the phone. He was unaware of § 87(2)(b) having any medical issues, the appearance of the house was normal, and nothing could be heard from inside. As they knocked on the door, § 87(2)(b) emerged, said that § 87(2)(b) was okay, and refused let anyone in, before returning inside. Sgt. Cadogan called ESU, who arrived and breached the door on Sgt. Cadogan’s instructions. Sgt. Cadogan believed he was required to affect an entry for APS when they wished to conduct a wellness check, and that there could be no legitimate reason why § 87(2)(b) would disallow APS and police from entering the home, surmising that § 87(2)(b) had ulterior motives for doing so.

In the 911 call (Board Review 07), § 87(2)(b) reported that § 87(2)(b) was preventing APS from seeing § 87(2)(b) and that he was listed as an “abuser” on a referral report received by APS. When asked by the operator whether there were any injuries involved, § 87(2)(b) responded, “No.” The dispatcher (Board Review 08) then put across to the 79th Precinct that § 87(2)(b) was not being allowed to see a “patient” and believed that “something was going on.”

In order to enter a home under the emergency exception to the warrant requirement, police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. People v. Rodriguez, 77 A.D. 280 (Board Review 09). Reasonable grounds to believe an emergency is present must be based upon objective, empirical facts rather than subjective belief. People v. Greenleaf, 222 A.D.2d 838 (Board Review 10). In People v. Garrett, 256 A.D.2d 588 (Board Review 11), the 2nd Department suppressed evidence obtained via a forcible entry into a home following minimal police investigation into a day-old, ambiguous, and uncorroborated report of child abuse relayed by a third party organization.

Upon receiving a report from Adult Protective Services in which the health or safety of an elderly person does not appear to be in immediate danger, officers should conduct a preliminary investigation, notify the Special Operations Lieutenant, and comply with applicable procedures regarding reports of crimes or persons in distress. PG 207-25 (Board Review 12).

§ 87(2)(g)
[REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b) .
- A request for any Notice of Claim related to this incident has been submitted to the Office of the Comptroller and will be added to case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Subject Officer CCRB Histories

- § 87(2)(b) previously filed CCRB case number § 87(2)(b) This is the first CCRB complaint involving § 87(2)(b) (Board Review 14).
- This is Sgt. Cadogan's first CCRB complaint as a subject in 13 years with the NYPD.

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date